

		due to the negligence of Landlord or Landlord's agents or employees, Tenant shall <u>indemnify, hold harmless, and, defend</u> Landlord..." As the Court in <i>Crawford</i> states, the parties "may agree that the promisor's indemnity and/or defense obligations will apply only if the promisor was negligent, or, conversely, even if the promisor was not negligent," and that in interpreting such a provision, "[e]ffect is to be given to the parties' mutual intent [], as ascertained from the contract's language if it is clear and explicit..." (<i>Crawford</i>, 44 Cal.4th at 551–552.) The lease language here is not vague, unclear or subject to multiple interpretations. On the contrary, it is straightforward and provides that if Shops/its agents/its employees are negligent, then Welltower does not have an unequivocal duty to defend it from claims resulting from that negligence. Based on this, the motion for summary adjudication is denied as there is a triable issue of material fact as to whether Shops' negligence contributed to Plaintiff's alleged damages thus alleviating Welltower of its duty to defend. Cross-Defendant Welltower shall give notice.
103	2019-01083328 Tian vs. Feng	Application Plaintiff and Judgment Creditor Li Tian's application for issuance of an order to show cause why an order should not issue for the sale of the residential real property known as 3334 Nearbrook Lane, Riverside, CA 92503, APN: 138-460-044-8 (the "property" or "dwelling") is granted. [ROA #358.] The Court will issue the proposed OSC submitted by Judgment Creditor and set the OSC for October 5, 2026 at 2:00 p.m. in Department C27. Facts In this action, the Court entered an amended judgment in Judgment Creditor's favor against defendants and judgment debtors Jingtao Feng and Juan Cao. [ROA #329.] An abstract of the judgment was recorded in Riverside County real property records on October 1, 2025. [Cheng Decl. (ROA #358), ¶13 and Ex. 2.] A writ in the amount of \$456,067.43 was levied against the property by the Orange County Sheriff's Civil Process Department. [Cheng Decl., Exs. 4 and 5.] The Orange County Sheriff's Office provided notice to the Judgment Debtors of the levy on 5/1/26. [Cheng Decl., Ex. 5.] Judgment Creditor filed her application for sale on 5/20/26 – within 20 days of notice to Judgment Creditors. [ROA #364.] Judgment Creditor's application is supported by the Cheng Declaration, which sets forth that: -The records of the Tax Assessor of the County in which the Subject Property is located indicate that there is no current homeowner's exemption or disabled veteran's exemption for the dwelling. [Cheng Decl., ¶ 10.] -on information and belief, the property is not currently being used as a homestead as Debtor testified at trial that he moved back to China with no intention of returning, a

finding of fact that was included in the judgment. [Cheng Decl., ¶ 11 and Ex. 1.]

-The judgment is not based upon a consumer debt. [Cheng Decl., ¶ 12.]

Legal Standard

California law provides that the interest of a natural person in a dwelling may not be sold to enforce a money judgment except under a court order obtained under Article 4 of Title 9 of the Code of Civil Procedure “and the dwelling exemption shall be determined under this article.” Code Civ. Proc. §704.740(a).

After a dwelling is levied upon, the levying officer must serve notice on the judgment creditor that the levy has been made and that the property will be released unless the judgment creditor complies with the requirements of Code Civ. Proc. §704.750. Code Civ. Proc. §704.750(a). **Within 20 days after service of the notice, the judgment creditor must apply to the court for an order for sale of the dwelling** and file a copy of the application with the levying officer. Code Civ. Proc. §704.750(a).

The application for order of sale must be made under oath, describe the dwelling, and contain the following information:

- a statement whether the records of the county tax assessor indicate that there is a current homeowner’s exemption or disabled veteran’s exemption for the dwelling and the person or persons who claimed any such exemption.
- a statement, which may be based on information and belief, as to whether the dwelling is a homestead and the amount of the homestead exemption, if any, and a statement whether the records of the county recorder indicate that a homestead declaration that describes the dwelling has been recorded by the judgment debtor or the spouse of the judgment debtor.
- a statement of the amount of any liens or encumbrances on the dwelling, the name of each person having a lien or encumbrance on the dwelling, and the address of such person used by the county recorder for the return of the instrument creating such person's lien or encumbrance after recording.
- a statement that the judgment is based on a consumer debt, as defined in subdivision (a) of Section 699.730, or that the judgment is not based on a consumer debt, and if the judgment is based on a consumer debt, whether the judgment is based on a consumer debt that was secured by the debtor's principal place of residence at the time it was incurred or a statement indicating which of the exemptions listed in subdivision (b) of Section 699.730 are applicable. I

Code Civ. Proc. §704.760.

Upon the filing of the application by the judgment creditor, the court must set a time and place for hearing and order the judgment debtor to show cause why an order for sale should not be made in accordance with the application. Code Civ. Proc. §704.770(a). The time set for the hearing must be within 45 days of the filing of the application or such later time as the Court orders upon a showing of good cause. Code Civ. Proc. §704.770(a).

Once the hearing date is set, the judgment creditor must do both of the following at least 30 days before the time set for hearing:

- serve on the judgment debtor, either by personal service or by mail, a copy of the order to show cause, a copy of the application of the judgment creditor, and a copy of the notice of the hearing in the form prescribed by the Judicial Council;
- personally serve a copy of these same documents on an occupant of the dwelling or, if there is no occupant present at the time service is attempted, post a copy of each document in a conspicuous place at the dwelling

		Code Civ. Proc. §704.770(b). Discussion Judgment Creditor’s application was timely filed within 20 days of the Sheriff’s notice of levy to Judgment Debtors. Code Civ. Proc. §704.750(a). [Cheng Decl., Ex. 5; ROA #364.] The application is essentially under oath as it is supported by the Cheng Declaration, which, as described above sets forth information required by Code of Civil Procedure section 704.760. [See Cheng Decl., ¶¶ 3, 4, 10-12 and Exs. 1 and 3.] Accordingly, the Court will issue the requested order to show cause.
104	2023-01325570 Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC	Motion to Be Relieved as Counsel or Record The motion of G&B Law, LLP, by James R. Felton, counsel of record for Cross-Defendant Cantor Group IV, LLC, for an order relieving it as counsel for Cross-Defendant is granted. [ROA #549.] Counsel is ordered to submit a revised order with the new next hearing date. Upon the signing of the order, counsel shall serve the signed order on Cross-Defendant and all parties that have appeared. Counsel will be relieved as counsel of record for Cross-Defendant effective upon the filing of the proof of service of the signed order upon Cross-Defendant and all other parties. Cross-Defendant cannot appear without counsel. A licensed attorney must represent a business entity. (<i>Paradise v. Nowlin</i> (1948) 86 Cal.App.2d 897, 898; <i>Roddis v. Strong</i> (1967) 250 Cal.App.2d 304, 311; see Bus. & Prof. Code, § 6125.) Failure to retain an attorney may lead to striking of the pleadings, among other actions. The Court sets a status conference re: Cross-Defendant’s retention of new counsel for February 8, 2027 at 10:00 a.m. in Department C27. If Cross-Defendant does not appear through counsel at the next hearing, the Court will issue an OSC re: obtaining counsel or striking of answer. Counsel for Cross-Defendant is ordered to give notice.
105	2025-01477589 Bian vs. Ford Motor Company	Motion for Judgment on the Pleadings Defendant Ford Motor Company’s motion for judgment on the pleadings is granted in part and denied in part. The motion is granted with 15 days leave to amend as to the first and second causes of action in Plaintiff Kuo Bian’s complaint; it is denied as to the third cause of action. Moving party is ordered to give notice.
107	2025-01515687 Horner vs. Kia America, Inc.	Motion – Other The motion by Defendant Kia America, Inc. (“Defendant”) for an order maintaining the confidential designation applied to documents produced in Defendant’s initial disclosures pursuant to CCP section 2031.060, subdivision (b) and the protective order between the parties is granted in part and denied in part.